

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wassim Abedrabbo	Team: Squad #09	CCRB Case #: 201810544	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Thursday, 11/01/2018 12:00 AM, NA, __/__/2018 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/1/2019	Precinct: 18
Date/Time CV Reported Tue, 12/04/2018 12:50 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 12/04/2018 12:50 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Mallette	27281	957800	MTN PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Lawrence Russo	27603	958032	MTN PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Mallette	Abuse: Police Officer Christopher Mallette threatened to damage § 87(2)(b)'s property.	A . Unsubstantiated
B . POM Christophe Mallette	Discourtesy: Police Officer Christopher Mallette spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Christophe Mallette	Off. Language: Police Officer Christopher Mallette made remarks to § 87(2)(b) based upon race.	C . Unsubstantiated
D . POM Christophe Mallette	Off. Language: Police Officer Christopher Mallette made remarks to § 87(2)(b) based upon race.	D . Unsubstantiated
E . POM Christophe Mallette	Abuse: Police Officer Christopher Mallette threatened to damage § 87(2)(b)'s property.	E . Unsubstantiated

Case Summary

On December 4, 2019, § 87(2)(b) and § 87(2)(b) filed this complaint in-person at the CCRB.

On an unknown date, at an unknown time, § 87(2)(b) was working § 87(2)(b) in Manhattan; at which time, Police Officer Christopher Mallette, Police Officer Lawrence Russo, and an unknown officer approached him. PO Mallette allegedly said, “Didn’t I tell you I was going to break your fucking speakers?” (**Allegation A: Abuse of Authority – Threat to damage property, unsubstantiated**) (**Allegation B: Discourtesy – Word, unsubstantiated**). § 87(2)(b) offered his license to PO Mallette upon request and PO Mallette “snatched” the license from him. § 87(2)(b) told PO Mallette that he could not do that, and PO Mallette allegedly said that he can do what he wants and § 87(2)(b) could not tell him “shit.” § 87(2)(b) asked PO Mallette if he was taught to interact with civilians in that manner, and PO Mallette allegedly said that he was taught to interact in that manner with Arabs like him (**Allegation C: Offensive Language – Race, unsubstantiated**). Additionally, PO Mallette allegedly saw § 87(2)(b) wearing the hijab and said, “You guys go back to your country...you guys can’t come here and think you can do whatever you want” (**Within Allegation C**) (**Allegation D: Offensive Language – Race, unsubstantiated**). PO Mallette stated once again that the next time he would not speak to § 87(2)(b) about music playing from speakers on the cart because he would just react (**Allegation E: Abuse of Authority – Threat to damage property, unsubstantiated**).

PO Mallette pointed out a bag of charcoal on the ground and when § 87(2)(b) asked where he should store the charcoal, PO Mallette allegedly told him to put it up his butt (**Within Allegation B**).

§ 87(2)(b) stated that he was issued a summons as a result of this interaction. Video footage was not obtained by the investigation.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Christopher Mallette threatened to damage § 87(2)(b) s property.

Allegation (B) Discourtesy: Police Officer Christopher Mallette spoke discourteously to

§ 87(2)(b)

Allegation (C) Offensive Language: Police Officer Christopher Mallette made remarks to § 87(2)(b) based upon race.

Allegation (D) Offensive Language: Police Officer Christopher Mallette made remarks to § 87(2)(b) based upon race.

Allegation (E) Abuse of Authority: Police Officer Christopher Mallette threatened to damage § 87(2)(b) s property.

It is undisputed that between October of 2018 and December of 2018, PO Mallette and § 87(2)(b) interacted on multiple occasions; all of which occurred at the § 87(2)(b)

During his CCRB statement, § 87(2)(b) alleged that on the day of the incident, PO Mallette immediately approached and said, “Didn’t I tell you I was gonna break your fucking speakers?” (**Board Review 02**). After PO Mallette snatched his license and § 87(2)(b) expressed his displeasure to PO Mallette, PO Mallette told § 87(2)(b) that he cannot tell him “shit.” § 87(2)(b) then asked PO Mallette if he was taught to speak with individuals in that

manner, and PO Mallette told him that he was taught to act that way with Arabs like him. PO Mallette then told § 87(2)(b) that the next time he would not speak to him about his speakers, he would just react.

On May 22, 2019, § 87(2)(b) appeared at the CCRB to provide a statement about other open CCRB complaints (**Board Review 04**). During his statement, § 87(2)(b) stated that he believed that the incident date he identified for this interaction was accurate, but could not definitively state it was because he has had many interactions with PO Mallette and PO Russo, making him unable to distinguish between the interactions.

PO Gould, who issued § 87(2)(b) the summons on November 30, 2018, does not match § 87(2)(b)'s description of the officer who issued him the summons during this incident. § 87(2)(b) stated that on the incident date, he was issued the summons by a "very tall" Hispanic male, with short black hair, who was in his 30s. PO Gould is a light skinned white male, who is § 87(2)(b), and has short brown hair (**Board Review 09**).

A request for all summonses issued directly to § 87(2)(b) and the cart he works for, § 87(2)(b) between October 1, 2018, and December 3, 2018, was received (**Board Review 01**). The investigation determined that none of them were related to this incident.

[illegible]

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to seven other CCRB complaints and has been named a victim in 15 allegations, 14 of which were made against PO Mallette (**Board Review 10**):
 - § 87(2)(b)
- § 87(2)(b) has been party to two other CCRB complaints and has been named a victim in one allegation (**Board Review 11**):
 - § 87(2)(b)
- PO Mallette has been a member of service for four years and is a subject in eight other CCRB complaints and 25 other allegations, 21 of which were made by § 87(2)(b) or § 87(2)(b) and none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of September 4, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (**Board Review 15**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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